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ITEM WISE EDITORIALS

52nd WEEK



NEPAL ... DELAY IN GOVERNMENT FORMATION

UPSC CSE – GS II

**GS II... INDIA AND ITS NEIGHBOURHOOD
RELATIONS**



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NEWSPAPER EDITORIALS

... DISCUSSION

28th DECEMBER, 2017

6

Post-poll 'chalphal' in Nepal

As an ordinance holds up government formation, the Left Alliance needs to be largehearted to find a way out



RAKESH SOOD

The word 'chalphal' in Nepali means more than a discussion; it implies an interminable discussion, often for the sake of it, to a point where the heat and dust of arguments the way forward gets obscured. Nepali politicians revel in this pastime. The post-election 'chalphal' currently underway in Kathmandu, unless resolved with maturity, will lead to heightened polarisation in a society that has been in search of political stability for nearly three decades.

This has been a watershed year when Nepal successfully conducted three elections – the local body elections after two decades followed by the first federal and provincial elections, under the new Constitution, in November-December. The elections were reasonably peaceful and the results have been accepted by all political parties but government formation remains uncertain.

The outcome

The new Constitution provides for a bi-cameral Parliament – a 275 member House of Representatives, of which 865 are directly elected on a 'first past the post' (FPTP) system and 180 on the basis of 'proportional representation' (PR); and a 59-member National Assembly (NA) consisting of eight members indirectly elected from each of the seven provinces and three nominated members. The Parliament is then convened to elect a new Prime Minister – not that there is any dispute about the fact that the Communist Party of Nepal (Unified Marxist-Leninist) leader K.P.S. Oli will be the PM.

In October, the UML and the Maoists came together to form a



Left Alliance with the prospects of a merger after the elections. Of 65 seats, the Left Alliance managed an impressive tally of 116, with Maoists getting 36 seats. The Nepali Congress was reduced to a distant third with 23 seats. An understanding between the Rashtriya Janata Party-Nepal (an alliance of Madhesi parties) and Upendra Yadav's Federal Socialist Forum helped them get 11 and 10 seats, respectively.

Interestingly, in terms of the vote count, the gap between the UML and the NC was marginal – the UML getting 33.2% of the vote and the NC maintaining its share at 32.8%, with the Maoists following with 13.7%. Therefore, in the PR category of 180 seats, UML and NC were close, getting 41 and 40 seats, respectively, with Maoists at 17 and the two Madhesi based parties claiming six each. With a total of 174 seats in a House of 275, the Left Alliance led by Mr. Oli is well placed to form the government.

Government formation

Yet the Election Commission of Nepal cannot announce the results. The issue is the methodology of election of the 56 members of the NA for which the electoral college consists of 550 members of provincial assemblies and the mayors/chairpersons and deputies of the 753 local bodies. Two months ago, the government had submitted an ordinance to President Bidhya Devi Bhandari proposing that the Election Commission frame the rules for the NA

elections on the basis of the single transferable vote (STV). This is seen as more representative and enables preference votes to be counted. (Rajya Sabha members are elected on this basis.)

President Bhandari, a UML loyalist who owes her position to Mr. Oli, has not signed the ordinance. The results of the provincial assembly elections have given the Left Alliance a clear majority in six of Nepal's seven provinces. Earlier this year, in the local body elections, the UML won the mayorships/chairmanships in 294 of the 753 bodies, with the Maoists winning another 106. On the basis of the FPTP system, the alliance can win 42 of the 56 seats, giving it a brute majority in the NA. The UML is, therefore, pushing the President to reject the ordinance.

The glitch is that the new Constitution provides for 33% representation in Parliament for women, with any shortfall being made up in the PR lists. The precise shortfall will not be clear till the NA members have been elected. Consequently, the names of the 180 PR members cannot be notified, and so the House cannot be convened to elect Mr. Oli as the new Prime Minister. Other political parties led by the NC are adamant on the STV system as being consistent with the intentions of the framers of the Constitution. Even the Maoists are quietly supportive of the STV idea.

Mr. Oli is blaming caretaker Prime Minister Sher Bahadur Deuba for delaying tactics and the de-

bate is increasing polarisation. Mr. Oli is unlikely to get his way but needs a political face-saver. The Maoist leader, Pushpa Kamal Dahal 'Prachanda', had joined the alliance thinking that he and Mr. Oli could share the prime ministership by dividing up the tenure. Given the UML's strong showing, Mr. Oli is not receptive to such an idea and has suggested that Mr. Prachanda instead become chairman of the new entity once the merger between the two parties takes place. Mr. Prachanda is unlikely to find this satisfactory as it cements his junior status, but his options seem to be limited.

The NC has received a drubbing in the FPTP results but its vote share remains intact, which is more a reflection of poor campaign management and disenchantment with the NC leadership than a dent in its political base. Its old leaders have been defeated, pointing to the need for a thorough revamp. Madhesi groups have put up a strong showing in Province 2 indicating that if they work together, they can be a potent force for pushing a forward looking agenda. Further constitutional amendments on inclusivity will have to be pushed through with persuasion rather than agitation and confrontation.

The way forward

Having won a decisive victory, Mr. Oli now needs to display a degree of pragmatism and balance, both at home and with India. President Bhandari has been urging consensus even as she keeps the NA election ordinance pending, and the UML would be well advised to accept the STV in the interests of democracy. A hard line may not only deprive Mr. Oli of his victory but also bring the office of the President into needless controversy.

On December 19, Mr. Oli undertook a surprise visit to Rasuwagadhi (on the Nepal-China border) to announce its upgradation to an international border crossing and the entry point for the railway link

from Shigatse, nearly 550 km away in Tibet. The gesture was noted in Delhi, as two days later Prime Minister Narendra Modi telephoned him to congratulate him on his election victory. He followed it up with a call to Mr. Prachanda and another to Mr. Deuba to felicitate him on the successful conduct of the elections.

Clearly, both sides need to get over the unpleasantness that marked Mr. Oli's nine-month tenure as Prime Minister in 2015-16. He blamed India for overly supporting the Madhesi agitation leading to the 'economic blockade' and held India responsible for Mr. Prachanda withdrawing support in July 2016 and forcing him to resign. The Indian action, particularly the economic dislocation caused by the 'blockade', generated a sentiment of anti-Indianism, effectively exploited in the elections by Mr. Oli in the guise of Nepali nationalism. Except for this short period, however, Mr. Oli has been consistently supportive of better relations between India and Nepal.

Playing the China card is not a new phenomenon in Nepal. In the past, China would advise Nepali leaders to resolve differences with India. Things have changed with Nepal now an eager participant in the ambitious Belt and Road Initiative.

While Mr. Oli is smart enough to see the risks of too close a Chinese embrace, Delhi too needs to rebuild trust with Mr. Oli. This requires addressing concerns quietly and ensuring consistency of messaging. Fast-tracking implementation of reconstruction and development projects promised after the devastating earthquake in 2015 would be a good signal and in keeping with Mr. Modi's 'neighbourhood first' policy.

Rakesh Sood is a former Ambassador to Nepal and is currently Distinguished Fellow at Observer Research Foundation. E-mail: rakeshsood2001@yahoo.com

6 Post-poll 'chalphal' in Nepal - Rakesh Sood

Date :28th December, 2017

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THE HINDU
INDIA'S NATIONAL NEWSPAPER SINCE 1878

Date :28th December, 2017

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Interestingly, in terms of the vote count, the gap between the UML and the NC was marginal — the UML getting 33.2% of the vote and the NC maintaining its share at 32.8%, with the Maoists following with 13.7%. Therefore, in the PR category of 110 seats, UML and NC were close, getting 41 and 40 seats, respectively, with Maoists at 17 and the two Madhesi based parties claiming six each. With a total of 174 seats in a House of 275, the Left Alliance led by Mr. Oli is well placed to form the government.

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WHY THE GOVERNMENT FORMATION IS DELAYED?

- 1 The Nepal Constitution provides for bicameral Parliament.
- 2 It consists of 275 member House of Representatives and 59 member National Assembly.



CHINA

Uttarakhand

NEPAL

Sikkim

Uttar Pradesh

Bihar

West Bengal

INDIA

HOUSE OF REPRESENTATIVES

- 165 are directly elected on a First-Past-The-Post system (FPTP).
- 110 are elected on the basis of Proportional Representation (PR).



NATIONAL ASSEMBLY

- 59 member National Assembly consists of 8 members indirectly elected from each of the 7 provinces, and 3 nominated members.
- The elections are just like our Rajya Sabha elections.



WHO WON THE ELECTIONS?



K. P. Sharma Oli
Leader (CPN-UML)



Pushpa Kamal Dahal
Leader (CPN-MC)

The Left Alliance won 174 seats in a House of 275.



Sher Bahadur Deuba



K. P. Sharma Oli

The present caretaker Prime Minister, Sher Bahadur Deuba is blamed for delaying tactics.

WHY THE GOVERNMENT FORMATION IS DELAYED?

- 1 The methodology of elections of the 56 members of the National Assembly is yet to be decided.
- 2 The new Constitution provides for 33% representation in Parliament for women and any shortfall is to be made up in the Proportional Representation lists.
- 3 The precise shortfall will be clear, once the National Assembly members are elected

Hence, the House cannot be convened to elect Mr. Oli as the new Prime Minister.



K. P. Sharma Oli
Leader (CPN-UML)

WHAT IS THE FIRST STEP OF Mr. OLI AFTER VICTORY?

- 1 Mr. Oli visited Rasuwagadhi to announce its upgradation to an International Border crossing.
- 2 This is at the Nepal-China Border.
- 3 It is the entry point for the railway link from Shigatse, nearly 550 Km away in Tibet.
- 4 The gesture was noted by India, as 2 days later the Prime Minister telephoned him to congratulate on his election victory



HOW THE RELATIONS BETWEEN INDIA AND NEPAL TRANSFORMED IN RECENT YEARS?



- 1 Though playing China card is not new to Nepal, but it appears to be moving towards China.
- 2 It is now an eager participant in the ambitious Belt and Road initiative.
- 3 The economic blockade during the Madhesi agitation resulted in anti-Indianism in Nepal.
- 4 This was exploited in the elections by Mr. Oli in the guise of Nepali nationalism



K. P. Sharma Oli
Leader (CPN-UML)

Delhi needs to rebuild trust with Mr. Oli. This requires addressing concerns quietly and ensuring consistency of messaging.

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